**WEEK:** 12 and 13

**LESSON TITLE :**

# IP & EMERGING DEVELOPMENTS

**TOPIC PRESENTED BY:**

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NATIONAL
PRAYER FOR
TEACHERS

# Learning Outcomes:

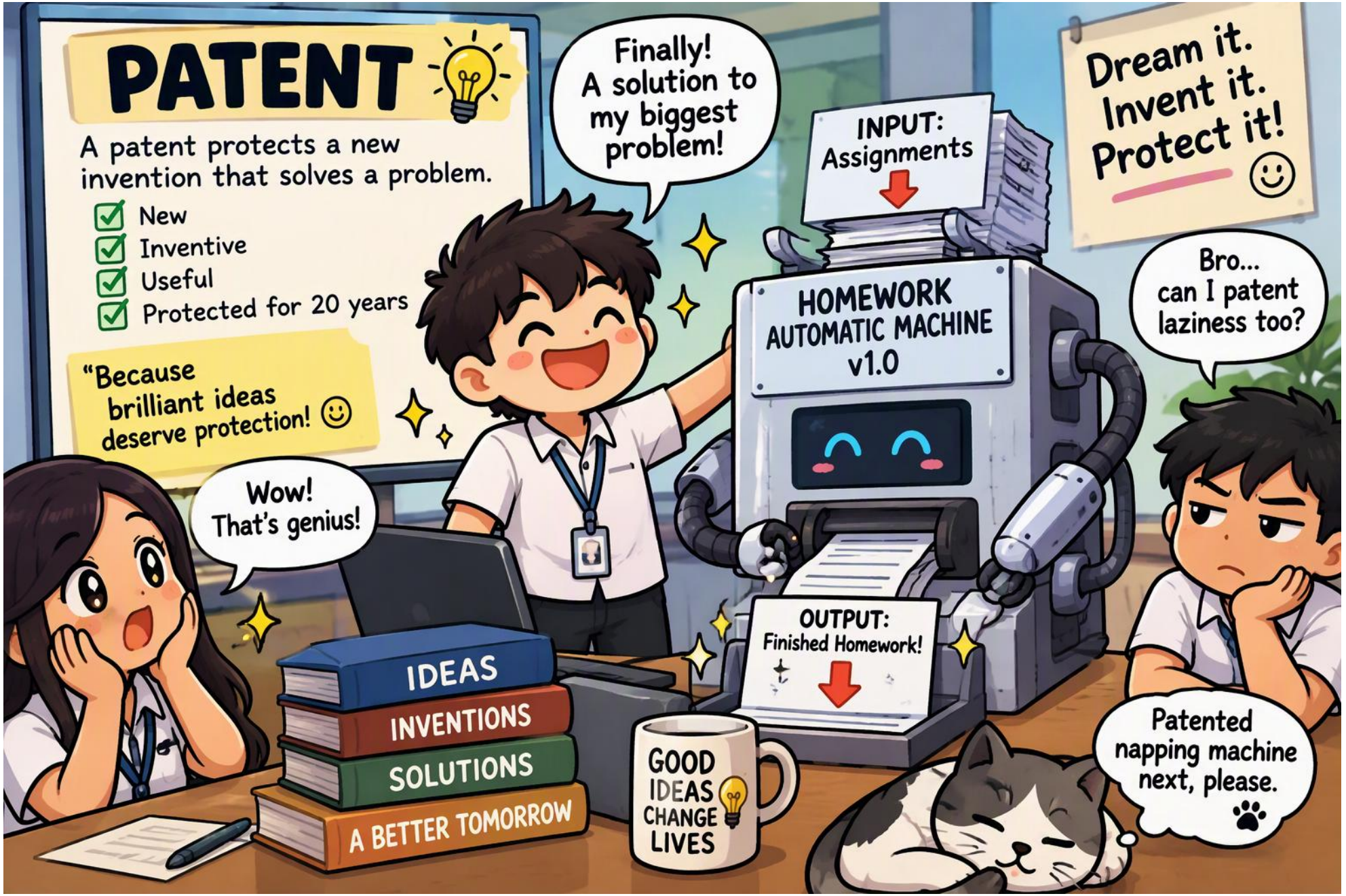
- Explain the different types of Intellectual Property.
- Identify the importance of protecting inventions, designs, brands, and creative works.
- Recognize my rights as a data subject under the Data Privacy Act.
- Apply responsible practices in protecting personal information online.
- Demonstrate respect for Intellectual Property and Data Privacy in daily life


NATIONAL INTELLECTUAL PROPERTY STRATEGY
(NIPS)
Before NIPS... my ideas were just tambak sa notes ko!
Now, I can create, protect, and turn my ideas into REAL OPPORTUNITIES!
IDEAS
INVENTIONS
BUSINESS PLANS
CREATIVE WORKS
FILIPINO IDEAS
IP PROTECTION
INNOVATION
CREATIVITY
ENTREPRENEURSHIP
ECONOMIC GROWTH
A BRIGHTER PHILIPPINES
NIPS turns Filipino ideas into real-world impact!
Same Ideas. Bigger Future!
IDEA → PROTECT → PROGRESS

# National Intellectual Property Strategy

## What is NIPS?

- A national framework that promotes innovation and creativity.
- Encourages Filipinos to create inventions, brands, technologies, and artistic works.
- Supports economic growth and global competitiveness.


PATENT
A patent protects a new invention that solves a problem.
New
Inventive
Useful
Protected for 20 years
"Because brilliant ideas deserve protection!
Finally! A solution to my biggest problem!
INPUT: Assignments
Dream it. Invent it. Protect it!
HOMEWORK AUTOMATIC MACHINE v1.0
Bro... can I patent laziness too?
Wow! That's genius!
OUTPUT: Finished Homework!
IDEAS
INVENTIONS
SOLUTIONS
A BETTER TOMORROW
GOOD IDEAS CHANGE LIVES
Patented napping machine next, please.

**What is a Patent?**
A patent protects a new invention that solves a problem through a unique technical solution.

**Requirements**
- ✅ Novel (new)
- ✅ Inventive
- ✅ Industrially applicable

**Protection Period**
- 20 years from filing date


UTILITY MODEL
Small change. Big help!
A utility model protects useful improvements to existing products. It may or may not have an inventive step.
Before...
Regular bottle lid
Ugh! So hard to open!
Now, much better!
After!
Improved flip-top lid
Advantages:
Faster to register
Lower cost
Easier process
Protects useful improvements
Small tweaks make a big difference.
SAME IDEAS
SMALL CHANGES
BIG IMPACT
Better Solutions for a Brighter Tomorrow
IMPROVED DESIGN
Easier to open
More durable
User-friendly
IT'S NOT A NEW PRODUCT... JUST A BETTER VERSION!
IDEAS CAN ALWAYS BE IMPROVED!

**What is a Utility Model?** Protects useful improvements to existing products or devices.

**Advantages**

- Faster registration
- Lower cost
- Easier application process

**Protection Period**

- 7 years


Industrial Design
Same function. Different look.
A more beautiful you!
Wow!
It's still a mug...
but it looks
AMAZING!
Same function
REGULAR MUG
(Still does the job)
New look,
same function!
Industrial Design
protects the ornamental
or aesthetic appearance
of a product.
Examples:
Product shapes
Patterns
Colors
Overall look
CREATIVITY
TURNS
EVERYDAY
THINGS INTO
SOMETHING
SPECIAL
DESIGN MATTERS
Same coffee.
More style!
IDEAS
DESIGNS
BETTER PRODUCTS
Design
makes a
difference!
Looks
Good
Feels Good
Brighter Days!
GOOD DESIGN
MAKES ORDINARY
THINGS EXTRAORDINARY

**What is an Industrial Design?** Protects the visual appearance of a product rather than its function.

**Examples**

- Product packaging
- Furniture designs
- Smartphone appearance
- Jewelry designs

**Protection Period**

- 5 years, renewable up to 15 years total


TRADEMARK
TM
A trademark is a word, name, logo, sign, or symbol that identifies and distinguishes the source of goods or services.
It helps customers recognize and trust a brand!
Same coffee?
NOPE!
I want the REAL one!
I know my brand!
GOOD BRANDS BRIGHTER DAYS
SUPPORT ORIGINAL SUPPORT CREATORS
Hmm... Parang may kulang...
Quality
Taste
Trust
That's why I choose this!
BRANDS
LOGOS
BUSINESSES
TRUST
SUCCESS
SAME PRODUCT DIFFERENT BRAND DIFFERENT STORY
A strong trademark builds a strong business!
STARBOKS COFFEE
COPYCAT BRAND
Look-alike, but not the same!

# Trademark

**What is a Trademark?** A symbol, logo, phrase, or name that identifies a business.

Brand Identity → Customer Recognition → Legal Protection → Business Value

**Examples**

- Jollibee Logo
- Nike Swoosh
- Apple Logo

**Protection**

- Renewable every 10 years


THE COPYRIGHT OFFICE
STAMP HERE
(90-day wait)
FORM
800-B-Z
DON'T LOOK
AT THE ART
WITHOUT
PERMISSION
COPYRIGHT INFRNGEMENT ZONE
IY CREATIVITY
CEASE AND
DESIST
LEGAL BINDERS
LEGAL BINDERS
IP LITIGATION
LICENSING
DEPT.
COPYRIGHT
INFRINGEMENT
HELP

**What is Copyright?** Automatic protection given to creators of original works.

Copyright

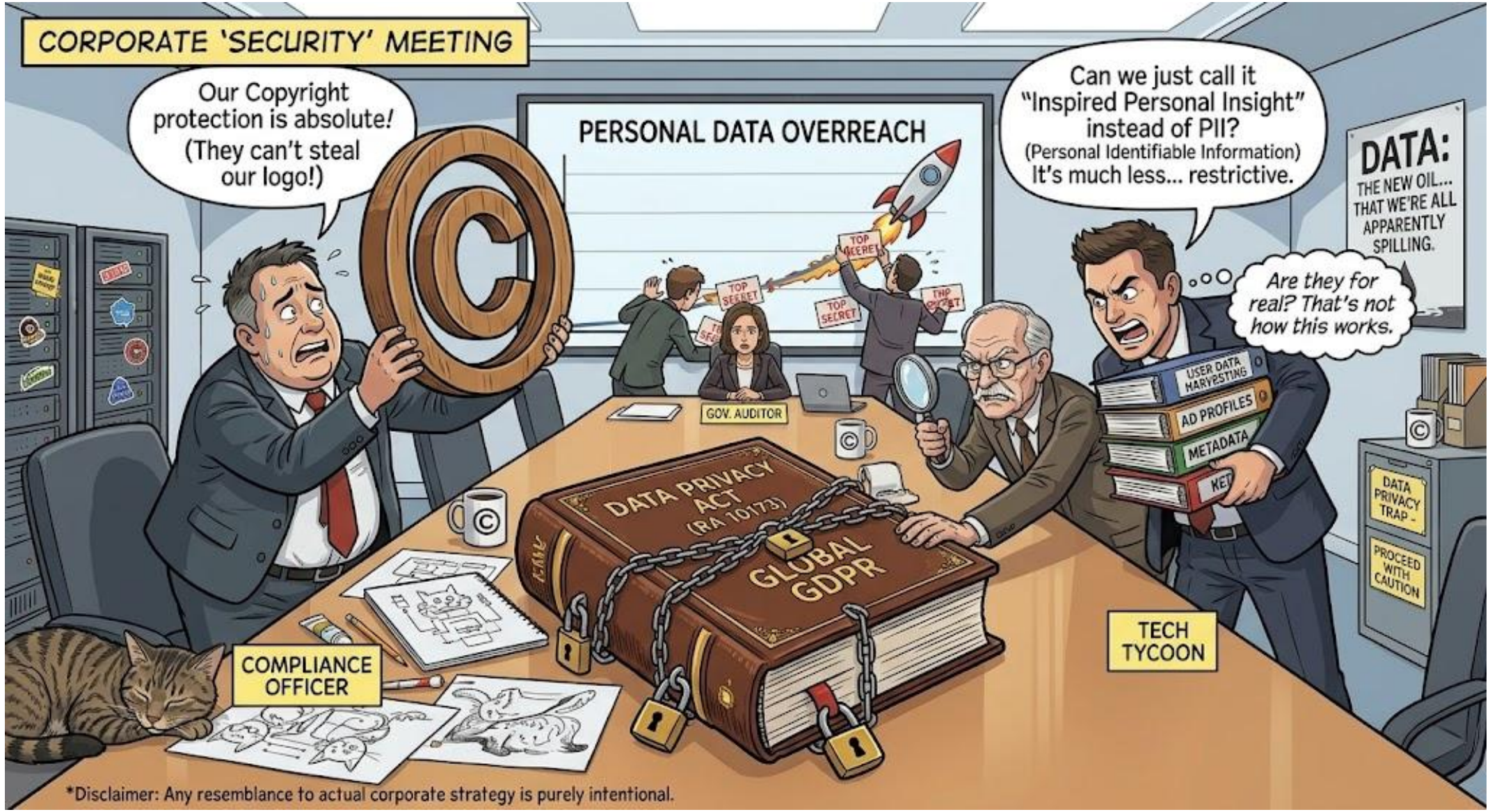
**Protected Works**

- Books
- Music
- Films
- Software
- Photographs

**Protection**

- Lifetime of the author + 50 years

**Real-Life Example** A student develops an educational software program. The source code is automatically protected by copyright.


CORPORATE 'SECURITY' MEETING
Our Copyright protection is absolute! (They can't steal our logo!)
PERSONAL DATA OVERREACH
Can we just call it "Inspired Personal Insight" instead of PII? (Personal Identifiable Information) It's much less... restrictive.
DATA: THE NEW OIL... THAT WE'RE ALL APPARENTLY SPILLING.
Are they for real? That's not how this works.
TOP SECRET
GOV. AUDITOR
DATA PRIVACY ACT (RA 10173)
GLOBAL GDPR
USER DATA HARVESTING
AD PROFILES
METADATA
DATA PRIVACY TRAP
PROCEED WITH CAUTION
COMPLIANCE OFFICER
TECH TYCOON
*Disclaimer: Any resemblance to actual corporate strategy is purely intentional.

# Data Privacy Act (RA 10173)

What is Data Privacy? The right of individuals to control how their personal information is collected, used, and stored.

**Personal Information Examples**

- Name
- Address
- Contact Number
- Email Address
- Student Number
- Medical Records

**Why It Matters** Protects individuals from identity theft, fraud, and misuse of personal data

# Your Data Privacy Rights



**The right to be informed**

Under the Data Privacy Act of 2012 (RA 10173), your personal information cannot be collected, used, or stored without your permission, except when allowed by law. Organizations must tell you what data they are collecting, why they need it, how it will be used, and inform you if your data has been compromised. This right helps you make informed decisions and protect your personal information.



# The right to access

You have the right to know if an organization has your personal information and request access to it. You may ask for a copy of your data, where it came from, how it is being used, who has received it, and when it was last accessed or updated. The information should be provided in a clear and understandable format

Student-Friendly Version

Right to Access

You have the right to:

- View your personal information held by an organization.
- Request a copy of your personal data.
- Know where the information came from.
- Know how and why it is being used.
- Know who has access to your information.
- Find out when your data was last updated.



# The right to object

You have the right to refuse or stop the processing of your personal data when it is based on your consent. If you withdraw your consent, the organization should stop using your information unless it is required by law or needed for legal or official purposes. You should also be informed of any changes in how your data will be used and be given the choice to agree or object.

Right to Object

You have the right to:

- Say"No" to certain uses of your personal information.
- Withdraw your consent at any time.
- Be informed if there are changes in how your data will be used.
- Decide whether to continue allowing the processing of your data.



# The right to erasure or blocking

You have the right to request that your personal data be blocked, removed, or deleted if it is incorrect, outdated, unlawfully obtained, no longer needed, used without your authorization, or processed in violation of your rights. You may also exercise this right if you withdraw your consent and there is no legal reason to continue processing your data.

Right to Erasure or Blocking

You can ask an organization to remove or stop using your personal information when:

- The information is incorrect or outdated.
- It was collected illegally.
- It is being used without your permission.
- It is no longer needed.
- You have withdrawn your consent.
- Your privacy rights have been violated.



## The right to damages

You have the right to claim compensation if you suffer harm because your personal data was used improperly, inaccurately, unlawfully, or without your authorization. This applies when your data privacy rights have been violated

💰 Right to Damages

You can seek compensation if:

- Your personal information was misused.
- Your data was shared without permission.
- Incorrect information caused harm to you.
- Your privacy rights were violated.



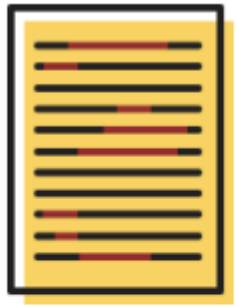
# The right to file a complaint

If your personal information is misused, improperly shared, wrongly disposed of, or if any of your data privacy rights are violated, you have the right to file a complaint with the National Privacy Commission (NPC).

**Right to File a Complaint**

You can report an organization if:

- Your personal information was misused.
- Your data was shared without permission.
- Your privacy rights were violated.
- Your personal information was not properly protected.



# The right to rectify

You have the right to correct any inaccurate, incomplete, or outdated personal information held by an organization. Once the information is corrected, the organization should update its records and provide the corrected information when necessary.

**Right to Rectification**

You have the right to:

- Correct wrong personal information.
- Update incomplete or outdated records.
- Request organizations to fix errors in your data.
- Ensure that corrected information is properly updated.



# The right to data portability

You have the right to obtain, copy, and securely transfer your personal data from one organization to another. This gives you greater control over your information and allows you to use your data across different services and platforms

**Right to Data Portability**

You have the right to:

- Get a copy of your personal data.
- Transfer your information to another organization.
- Store and manage your data on your own device.
- Control how your data is shared and used.

## Limitations on Rights (Simplified)

Some data privacy rights, such as data portability, may not apply when personal data is used solely for scientific or statistical research and no decisions are made about the individual. These rights may also be limited when data is being used for criminal, administrative, or tax investigations. In such cases, the data must still be kept confidential and used only for its intended purpose.

Student-Friendly Version

⚠ Limitations on Rights

Your data privacy rights may be limited when:

- The data is used only for scientific or statistical research.
- The data is needed for criminal, administrative, or tax investigations.
- The information is kept confidential and used only for a lawful purpose.

# References:

1. https://www.ipophil.gov.ph/services
2. https://www.privacy.gov.ph/know-your-rights/#topic7_part9